Superior Court of the State of California
County of Orange

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.
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Date: August 28, 2026

1	**Huerta vs. Socal Wings Buena Park, LLC** 2025-01502338	**Demurrer to Complaint** Defendants SC Wings Buena Park, LLC, Buffalo Wild Wings, Inc., and Ryan Miller's Demurrer is SUSTAINED. Defendants demur to the twelfth cause of action for harassment and all causes of action as to defendant Buffalo Wild Wings, Inc.

		Twelfth Cause of Action – Harassment "To establish a prima facie case of a hostile work environment, [Plaintiff] must show that (1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on her protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment." (Ortiz v. Dameron Hospital Association (2019) 37 Cal.App.5th 568, 581). Here, the Complaint merely alleges Plaintiff was harassed because she is a Latina woman without stating the harassing conduct or facts demonstrating that her race or gender was a substantial factor in the discrimination. Such bare allegations are insufficient to state a cause of action for harassment. Accordingly, the demurrer to the twelfth cause of action is SUSTAINED. All Causes of Action as to Buffalo Wild Wings, Inc. "To evaluate whether an entity is an employer for FEHA purposes, courts consider the totality of circumstances and analyze several factors, principal among them the extent of direction and control possessed and/or exercised by the employer over the employee." (Jimenez v. U.S. Continental Marketing, Inc. (2019) 41 Cal.App.5th 189, 193.) Courts have recognized that franchisors are not joint employers without the exercise and control of the wages, hours and working conditions. (See Patterson v. Domino's Pizza, LLC (2014) 60 Cal.4th 474, 499 (finding that franchisor was not the employer because it lacked general control of an employee over relevant day-to-day aspects of the employment and workplace behavior of the franchisee's employees.].)

		In this case, the Complaint merely alleges Buffalo Wild Wings, Inc. was Plaintiff's joint employer or alter ego of defendant SC Wings Buena Park, LLC. However, there are no facts alleged to support this conclusion. Therefore, Plaintiff has not sufficiently alleged facts that Buffalo Wild Wings is liable as a joint employer. Accordingly, the demurrer to the twelfth cause of action is SUSTAINED. Plaintiff has 15 days leave to amend. Moving Parties shall give notice.
2	**Regions Bank vs. Totorica Plumbing, Inc.** 2025-01516311	**Motion for Summary Judgment and/or Adjudication** Plaintiff Regions Bank dba Ascentium Capital's Motion for Summary Judgment is GRANTED. "The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. (See Evid. Code, § 500.) There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (fn omitted).) Code of Civil Procedure section 437c, subdivision (p)(2) states, "A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause

		of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." Once the defendant has met this burden, the burden shifts to the plaintiff to show a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (Code Civ. Proc., § 437c, subd. (p)(1).) First Cause of Action – Breach of Contract The elements for a cause of action for breach of contract are: (1) the existence of a contract, (2) the plaintiff's performance, (3) the defendant's breach, and (4) damages. (Roth v. Malson (1998) 67 Cal.App.4th 552, 557.) The elements are satisfied for Plaintiff's breach of contract claims. First, Plaintiff has shown the existence of a valid contract, the Installment Payment Agreement, between itself and Totorica Plumbing. (Noon Decl., ¶ 3.) Second, Plaintiff performed all its obligations with respect to the Agreement by paying the vendor for the equipment on Totorica Plumbing's behalf. (Noon Decl., ¶¶ 5, 6.) Third, Totorica Plumbing defaulted under the terms of the Agreement by failing to timely make payments per the loans terms, and failing to pay the entire outstanding balances. (Noon Decl., ¶¶ 8, 9.) Fourth, as a result of Totorica Plumbing's failure to repay the amount due, Plaintiff has been damaged in the amount of no less than $75,022.19. (Noon Decl., ¶ 9.) Defendants do not dispute Plaintiff's material facts. Rather, they oppose the motion by attacking the declaration of Jerry Noon, Vice President of Asset Management for Regions

		Bank, as lacking personal knowledge to authenticate the loan documents. The business records exception set forth under Evidence Code §1271, states as follows: "[e]vidence of a writing made as a record of an act, condition, or event is not made inadmissible by the hearsay rule, when offered to prove the act, condition or event if: (a) The writing was made in the regular course of a business; (b) The writing was made at or near the time of the act, condition or event; (c) The custodian or other qualified witness testifies to its identify and the mode of its preparation; and (d) The sources of information and method and time of preparation were such as to indicate its trustworthiness." "A trial court has wide discretion in determining whether a qualified witness possesses sufficient personal knowledge of the identity and mode of preparation of documents for purposes of the business records exception. Indeed, any qualified witness who is knowledgeable about the documents may lay the foundation for introduction of business records – the witness need not be the custodian or the person who created the record…or one with personal knowledge in order for a record to be admissible under the hearsay exception." (Estate of O'Connor (2017) 16 Cal.App.5th 159, 170.) Here, Mr. Noon has testified via his declaration that he is the Vice President of Asset Management for Regions Bank, and the records and files related to this action are kept in his custody and under my direction and supervision in the regular course of business.. (Noon Decl., ¶ 2.) Furthermore, Mr. Noon states that the business records "were made by Plaintiff's employees in the ordinary course of business at or near the time of the event described or recorded in such records." (Ibid.) Mr. Noon also testified that he is personally familiar with the identity, mode of preparation, source of information, method

		and time of preparation of such records. (Ibid.) He has personally worked on such books, records and files. (Ibid.) The Court finds Defendants hearsay claim is without merit and Mr. Noon has sufficiently established the loan documents and guaranty are admissible under the business record exception to the hearsay rule. Defendants next argue that Mr. Noon does not lay the foundation to properly authenticate the electronic signature of Defendant Frank. In Fabian v. Renovate America, Inc. (2019) 42 Cal.App.5th 1062, the court affirmed the denial of a petition to compel arbitration because the petitioner failed to prove by a preponderance of the evidence that plaintiff electronically signed the subject argument. (Id. at 1063). The court found that defendant only summarily asserted that plaintiff entered into a contract, but did not state anywhere in his declaration that plaintiff actually signed the contract, electronically or otherwise. (Id. at 1069). Fabian is easily distinguished from the present case because the defendant in that case submitted evidence to challenge the authenticity of the electronic signatures. Further, the court in Fabian held that the party met its initial evidentiary burden, but because the party challenging the authenticity of the electronic signature declared that she did not sign the contract, the other party then had "the burden of proving by a preponderance of the evidence that the electronic signature was authentic." (Id. at 1067.) In this case, Defendant Frank does not deny executing the loan documents on behalf of Totorica Plumbing and guaranty. Defendant Frank has submitted no evidence to challenge the authenticity of his electronic signature. He has offered no declaration contesting his electronic signature nor does he claim he did not sign the documents.

		Thus, Defendants have failed to raise a triable issue of material fact as to any elements of the cause of action for breach of contract. Accordingly, the motion is GRANTED as to the first cause of action. Second Cause of Action – Breach of Guaranty As to Plaintiff's breach of guaranty claim, the elements are the same as those for breach of contract, and have also been satisfied. First, Defendant Frank executed a personal guaranty for the indebtedness of Totorica Plumbing. (Noon Decl., ¶ 4.) Second, Plaintiff performed its obligations under the Agreement and Guaranty. (Noon Decl., ¶¶ 5, 6.) Third, Totorica Plumbing defaulted under the terms of the Agreement and Guaranty by failing to timely make payments per the loans terms, and failing to pay the entire outstanding balance. (Noon Decl., ¶ 8.) Fourth, Defendant Frank's failure to pay the full repayment amount is a breach of the Guaranties, resulting in no less than $75,022.19 in damages to Plaintiff. As stated above, Defendants objections to Mr. Noon's declaration are without merit. Therefore, Defendants have failed to raise a triable issue of material fact as to any elements of the cause of action for breach of guaranty. Accordingly, the motion is GRANTED as to the second cause of action. Third Cause of Action – Money Lent A claim for money lent is one of the common counts. (Rubinstein v. Fakheri (2020) 49 Cal.App.5th 797.809.) "A common count claim broadly applies wherever one person has received money which belongs to another, and which in equity and good conscience, or in other words, in justice and right, should be returned." (Ibid. [cleaned-up].) Here, Plaintiff paid the vendor for equipment Totorica Plumbing, Inc.'s business. Defendants failed to pay Plaintiff for all the

		amounts due for money lent to purchase the equipment and have been damaged. Defendants do not dispute these facts. Therefore, no triable issue of material fact exists as to the claim for money lent. Accordingly, the motion is GRANTED as to the third cause of action. Fourth Cause of Action – Possession of Personal Property An action for recovery of personal property is a Code based cause of action with damages in a proper case for its detention. (See Eleanor Licensing LLC v. Class Recreations LLC (2018) 21 Cal.App.5th 599, 612; Code Civ. Proc. § 627.) Here, Defendants are in default of the Agreement. The Agreement provides that upon default Plaintiff may take possession of the equipment. Defendants have not surrendered the equipment, despite Plaintiff's demand. Defendants do not dispute these facts. Therefore, no triable issue of material fact exists as to the claim for possession of personal property. Accordingly, the motion is GRANTED as to the fourth cause of action. Because the motion disposes of all the claims brought by Plaintiffs against Defendants, summary judgment is appropriate. (Civ. Proc. Code 437c, subd. (c); All Towing Services LLC v. City of Orange (2013) 220 Cal.App.4th 946, 954.) Plaintiff to submit a proposed judgment consistent with this order. Plaintiff shall give notice.

3	**Mugavero vs. Lendward** 2026-01547162	**Motion to Be Relieved as Counsel of Record** Attorneys Vanya Khanna and Lipeles Law Group, APC's motion to withdraw as counsel of record for plaintiff Chad Mugavero is GRANTED. Moving Parties shall file an amended proposed order with Plaintiff's correct address. The current proposed order contains an error. The order shall become effective upon the filing of the proof of service of the (amended) signed order upon the client. (See Cal. Rules of Court, rule 3.1362.) Moving Parties shall give notice.
5	**Hainan Guanghua Group USA vs. Guo** 2025-01465422	**Motion to Be Relieved as Counsel of Record** Attorney Mary Liu and Law Office of Mary Liu's motion to be relieved as counsel of record for Qingdao Wodi International Trading Co., Ltd. is GRANTED. Moving counsel shall file an amended proposed order with Responding Party's (client) correct address. The current proposed order contains no address. The order shall become effective upon the filing of the proof of service of the (amended) signed order upon the client. (See Cal. Rules of Court, rule 3.1362.) Attorney Liu shall give notice.
10	**Wang vs. Jan** 2026-01551895	**Motion for Order to Stay Proceedings** Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency. (CCP 187; Freiberg v. City of Mission Viejo

(1995) 33 Cal.App.4th 1484, 1489; Adams v. Paul (1995) 11 Cal.4th 583, 600.) The court’s discretion to stay civil proceedings also applies while a criminal action is pending, in which case the court may also use “sound discretion” to “assess and balance the nature and substantiality of the injustices claimed on either side.” (Avant, supra at 881–882.) The criminally charged party or witness may seek a stay of discovery on this ground, but again, such a stay is discretionary: “defendant has no right to a blanket stay on 5th Amendment grounds.” (Rutter Group, Civil Procedure Before Trial, Chapter 8C-3, Section 8:136, citing Klein v. Superior Court (1988) 198 Cal.App.3d 894, 905.)

Alternatively, the court may instead require a civil defendant facing parallel criminal proceedings to assert any 5th Amendment privilege in response to specific discovery requests and/or depo questions, rather than a full stay of civil proceedings, and/or discovery generally. (Warford v. Medeiros, supra at 1045; In re Marriage of Sachs (2002) 95 Cal.App.4th 1144, 1151.)

In Pacers, supra, the court upheld a discovery stay as to defendants’ depositions until the criminal statute of limitations had expired:

An order staying discovery until expiration of the criminal statute of limitations would allow real parties to prepare their lawsuit while alleviating petitioners' difficult choice between defending either the civil or criminal case. [Citation.]

This remedy is in accord with federal practice where it has been consistently held that when both civil and criminal proceedings arise out of the same or related transactions, an objecting party is generally entitled to a stay of discovery in the civil action until disposition of the criminal matter. [Citations.] The rationale ... is based on Fifth Amendment principles as well as the inherent unfairness of compelling disclosure of a criminal defendant's evidence and defenses before trial ... the prosecution should not be able to

		obtain, through the medium of the civil proceedings, information to which it was not entitled under the criminal discovery rules. [Citation.] (Id. at 690; emphasis added.) The factors to be considered in whether to grant a stay due to pending criminal proceedings are: (1) the extent to which defendants' 5th Amendment rights are implicated; (2) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (3) the burden which any particular aspect of the proceedings may impose on defendants; (4) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (5) the interests of persons not parties to the civil litigation; and (6) the interest of the public in the pending civil and criminal litigation. (Avant, supra at 887, citing Keating v. Office of Thrift Supervision, supra at 324.) "Courts that are confronted with a civil defendant who is exposed to criminal prosecution arising from the same facts 'weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible.'" (Fuller v. Superior Court (2001) 87 Cal.App.4th 299, 307, citing Pacers, supra at 690.) Here, Moving Party (MP) seeks a stay of the entire action, or alternatively, to stay all discovery. However, as Responding Parties (RPs) correctly point out, MP has no standing to assert any Fifth Amendment privilege as to anyone but himself. (Hoffman, supra at 485–486 ["The Fifth Amendment declares in part that 'No person ... shall be compelled in any Criminal Case to be a witness against himself;'" emphasis added].) The Fifth Amendment privilege protects MP from providing incriminating testimony against himself, but does not extend to precluding discovery from third parties. (Avant, supra at 887 ["the privilege being personal to the individual criminal defendants, the claimed threatened infringement on that privilege cannot be a burden to Avant"].)

		Further, the other two defendants in this action are entities, which do not have any Fifth Amendment privilege against self-incrimination at all. (Avant, supra at 886 ["Clearly, because a corporation has no right against self-incrimination, it has no Fifth Amendment interests to protect"].) MP's Reply continues to conflate the issues, arguing that even "[a] perfectly innocent question to plaintiff may be the missing link the prosecution needs to establish some factual element of Dr. Jan's alleged crimes," which MP contends is precluded under Hoffman, supra. (Reply at 4:10-15; emphasis added.) Hoffman involved a witness' invocation of his Fifth Amendment rights directly, not any third party discovery. Plaintiffs certainly do not have any obligation to avoid offering testimony or other evidence that could criminally implicate MP. Nor does MP cite any authority that prosecutors cannot obtain evidence from sources other than MP. The relevant factors discussed above favor a stay of discovery in this action as to MP, rather than a complete stay of all proceedings. The instant action and the criminal proceedings against MP arise out of the same incident, and there does not appear to be any dispute that discovery to/from MP will necessarily implicate MP's 5th Amendment rights. Further, this matter is still in its relatively early stages, and no trial date is set. Thus, there would be little impact to the court's resources if discovery as to MP only is stayed. Finally, there appears to be little prejudice to the other parties if discovery is stayed as to MP only; as noted above, potential prejudice to MP via discovery from third parties is not part of the Fifth Amendment analysis. RULING: Defendant Hong-An Jan, M.D.'s motion for an order to stay civil proceedings, or in the alternative, to stay discovery, is GRANTED IN PART and DENIED in part.

		The Court orders that discovery to moving party is STAYED, due to pending criminal proceedings. (Avant! Corp. v. Superior Court (2000) 79 Cal.App.4th 876, 885; Pacers, Inc. v. Superior Court (1984) 16 Cal.App.3d 686, 689.) The request to stay this action entirely, and/or to stay all discovery, is DENIED. (Avant! Corp. v. Superior Court, supra at 886 ["Clearly, because a corporation has no right against self-incrimination, it has no Fifth Amendment interests to protect"]; see also id. at 887 [Fifth Amendment privilege was personal to individual employees, not employer].) An Order to Show Cause re: Status of Criminal Proceedings is set for June 7, 2027 at 9 AM. The Case Management Conference set for September 28, 2026 is also continued to June 7, 2027 at 9 AM. Moving party shall give notice of all the above.
11	**Mitcham vs. West Coast Servicing, Inc.** 2025-01504740	**Demurrer to Amended Complaint** Defendant West Coast Servicing, Inc.'s demurrer to the First Amended Complaint [FAC] is SUSTAINED as to the 1st and 2nd causes of action, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) The remainder of the demurrer is OVERRULED. Moving defendant's request for judicial notice is (1) GRANTED as to Exs. A-D, limited to the fact that the documents were recorded, but not of the truth of their contents (Poseidon Development, Inc. v. Woodland Lane Estates, LLC (2007) 152 Cal.App.4th 1106, 1117 ["the fact a court may take judicial notice of a recorded deed, or similar document, does not mean it may take judicial notice of factual matters stated therein"]); (2) GRANTED as to

		Exs. H, J, and O (Evid. Code 452, subd. (d) [court records]; (3) GRANTED as to Exs. F, G, I, and K-N, limited to the fact that the documents were filed, but not of the truth of their contents (In re Vicks (2013) 56 Cal.4th 274, 314 ["while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files"]; Williams v. Wraxall (1995) 33 Cal.App.4th 120, 130, FN 7 [judicial notice of court records ordinarily limited to orders, statements of decision, and judgments]); and (4) DENIED as to Ex. E. Plaintiff is granted 15 days leave to amend. Moving party shall give notice. 1st cause of action for breach of contract - loan modification agreement. This cause of action fails to state sufficient facts. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821 [elements].) This cause of action alleges that defendant breached a loan modification agreement which combined a senior loan and deed of trust [DOT] with the junior loan and DOT now held by moving defendant. (FAC, ¶¶ 11, 12, 38, 41.) However, the "Modification Agreement" (Ex. 3 to FAC) only refers to a single loan, i.e. the first loan. (See Holland v. Morse Diesel International (2001) 86 Cal.App.4th 1443, 1447 [exhibits attached to the FAC given precedence over inconsistent allegations in the FAC].) The FAC also fails to allege sufficient facts to show how the claim and/or amended claim filed by defendant's predecessor during plaintiff's Chapter 13 bankruptcy proceedings modified the original terms of the junior loan/DOT. (Civ. Code, § 1624, subd. (a)(3) [an agreement "for the sale of real property, or of an interest therein" is subject to the statute of frauds, requiring a writing]; Civ. Code, § 2922 ("A mortgage can be created, renewed, or extended, only by writing, executed with the formalities required in the

		case of a grant of real property"]; Secrest v. Security National Mortgage Loan Trust 2002-2 (2008) 167 Cal.App.4th 544, 553 ["An agreement to modify a contract that is subject to the statute of frauds is also subject to the statute of frauds"].) The FAC now alleges plaintiff's performance under the second DOT currently held by defendant (FAC, ¶ 40), as well as facts that at least some of the accrued interest on the second DOT was discharged in bankruptcy (FAC, ¶¶ 23, 26, 27, 29). Leave to amend is granted to allege breach of the second DOT, if available. Demurrer to 2nd cause of action: breach of implied covenant of good faith and fair dealing. A claim for breach of the implied covenant of good faith and fair dealing requires the existence and breach of an underlying contract. (Love v. Fire Insurance Exchange (1990) 221 Cal.App.3d 1136, 1153.) Thus, since the 1st cause of action fails, the 2nd cause of action fails as well. Demurrer to 3rd cause of action: declaratory relief. This cause of action states sufficient facts. (Code Civ. Proc., § 1060 [authorizing declaratory relief]; Ludgate Ins. Co. v. Lockheed Martin Corp. (2002) 82 Cal.App.4th 592 [elements].) Even if the "Modification Agreement" attached as Ex. 3 to the FAC did not include the loan/DOT now held by moving party, the FAC alleges other facts disputing the amount owed, which is sufficient. (FAC, ¶¶ 17-19, 23, 27, 29-33, 60-65, 67.) Demurrer to 4th cause of action: violation of Bus. & Prof. Code, §§ 17200 et. seq. This cause of action states sufficient facts. (Bus. & Prof. Code, §§ 17200, 17203, 17204, 17206; FAC, ¶¶ 70, 71.) The 6th cause of action, discussed below, supports this cause of action under the "unlawful" prong of Bus. & Prof. Code, § 17200.

		Demurrer to 6th cause of action: violation of the Rosenthal Fair Debt Collection Practices Act. This cause of action states sufficient facts. Moving party contends that this cause of action fails because the "Modification Agreement" does not include the junior loan. However, as discussed above in connection with the 3rd cause of action, plaintiff states sufficient facts to dispute the amounts claimed by defendant, on other grounds. Moving Party shall give notice.
12	**Brown vs. Buwalda** 2025-01516756	**1. Demurrer to Amended Complaint** **2. Motion to Strike Portions Of Complaint** **3. Demurrer to Amended Complaint** **4. Motion to Strike Complaint** Demurrer Sixth Cause of Action for Intentional Infliction of Emotional Distress Belmont defendants Belmont argues plaintiffs have not alleged Belmont's conduct was extreme or outrageous. Belmont further alleges plaintiff haven't set forth sufficient facts establishing they have experienced emotional distress. Finally, Belmont contends it is alleged plaintiffs discovered the presence of toxic mold on September 3, 2024, when Belmont was no longer a property manager. Buwalda Buwalda argues the FAC is devoid of specific allegations regarding the nature and extent of the alleged severe emotional distress Plaintiffs claim they suffered due to Defendant's conduct. Plaintiffs make general and conclusory allegations that they "suffered severe mental anguish and emotional

		suffering past and future," "acute and ongoing anguish of being unable to protect their family" and "were required to and did seek medical attention, and will need medical attention in the future" without stating what kind of medical attention they sought, whether it was from a mental health professional or some other kind of medical professional. Opposition In opposition, plaintiffs contend property managers can be liable in tort for habitability related misconduct. Defendants contend the FAC alleges only a failure to repair. However, the FAC states a prolonged pattern of knowing, deliberate conduct, repeated complaints over more than 20 months; water intrusion and mold spreading through multiple areas; and a January 2024 overflow causing widespread damage, among various other habitability issues. FAC ¶¶ 26, 29, 35, 39, 43, 49-53, 167-179. Belmont's knowledge that the conditions were affecting Plaintiffs' health and worsening the minor Plaintiff's asthma; Belmont's representations that it would seek consent for repairs; Belmont's refusal to remediate because the property was being sold; and continued exposure until professional testing confirmed toxic mold. Id. Thus, Belmont knew of health impacts, intentionally allowed water intrusion and mold to worsen, refused without justification remediation because of the sale, and failed to fulfill its duties despite more than 20 months of continuous complaints, intestinal pains, constipation, memory issues, coughing, rashes, and worsening asthma requiring extra doctor visits and new medications while he was residing at the premises. FAC ¶ 58. Minor Plaintiff suffered these physical and emotional symptoms because of Belmont's intentional inaction. Id. Plaintiff Alicia suffered fatigue, dry cough, eye crusting, rashes, acne, body aches, constant sore throat, insomnia, anxiety, physician-diagnosed toxic mold exposure, Penicillium/Aspergillus-related infection, resistant staph infection, and abnormal weight loss all arising throughout her tenancy

		at the premises. FAC ¶ 59. Plaintiff Tiffany suffered exhaustion, mood swings, weight loss, body and joint pain, brain fog, anxiety, depression, coughing, asthma, intestinal pains, memory issues, and rashes while she resided at the premises. FAC ¶ 60. All Plaintiffs sought medical treatment and incurred medical expenses. FAC ¶¶ 61, 68. The opposition further argues Buwalda was not a remote owner unaware of the problem, he personally walked through the unit in December 2023, promised to address ongoing problems, and was personally aware of the issues and Plaintiffs' health concerns, including Abraham's asthma diagnosis. FAC ¶¶28-70. Despite that knowledge, Buwalda failed to remediate the dangerous conditions during the remainder of his ownership. Id. Up to the July 2024 sale, Buwalda did nothing to remediate water leakage and mold despite repeated complaints spanning more than 20 months of requests and notifications. Id at ¶43. In reply, Belmont argues it cannot be liable because plaintiffs admit the owner prevented Belmont from taking any action in response to plaintiffs' complaint (paragraph 179.) To establish an IIED claim, a plaintiff must prove three elements: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Ragland v. U.S. Bank National Assn. (2012) 209 Cal.App.4th 182. The conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized community." Cornell v. Berkeley Tennis Club (2017) 18 Cal.App.5th 908. Property managers acting as agents of landlords can be held liable for IIED claims. For example, in Burnett v. Chimney Sweep, (2004) 123 Cal.App.4th 1057, the court held that "allegations against property manager of

		lessees' tort claims in connection with toxic mold on premises were sufficient to survive a motion for judgment on the pleadings" where the manager had a duty to repair unsafe conditions and breached that duty. The court found that whether the lessor's conduct in failing to remediate excessive moisture and toxic mold was sufficiently extreme and outrageous to support an IIED claim was a question of fact. The critical issue is whether refusing to fix defects because the property is being sold constitutes "extreme and outrageous" conduct. Courts have found outrageous conduct in landlord-tenant cases involving unlawful lockouts, (Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1104, retaliatory rent increases after tenants exercised repair rights, (Aweeka v. Bonds (1971) 20 Cal.App.3d 278), and deliberate failures to maintain habitability that endangered tenant health. However, mere breach of the duty to repair, standing alone, typically does not meet the outrageousness threshold. The refusal to repair must be accompanied by circumstances demonstrating intentional or reckless disregard for the tenant's wellbeing, such as knowledge of dangerous conditions, awareness of tenant vulnerability, or conduct that violates statutory duties. In Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, the court concluded that whether the failure to act was extreme and outrageous presents a factual question that cannot be resolved as a matter of law on demurrer or similar motions. The analysis focuses on the defendant's knowledge and intent. In Stoiber, the plaintiff alleged she suffered extreme emotional distress as a result of the landlord's and property manager's knowing, intentional, and willful failure to correct defective conditions. The court did not require that the landlord engage in affirmative misconduct like threats or harassment; rather, the knowing inaction itself — the deliberate failure to remedy known dangerous conditions — could

		constitute the extreme and outrageous conduct necessary for IIED liability. Stoiber, id. This approach has been followed in subsequent California cases, including Burnett v. Chimney Sweep, which applied the same framework to property managers who failed to remediate toxic mold despite knowledge of the dangerous condition. Courts examine whether the property manager knew about dangerous conditions, understood the health risks, repeatedly failed to properly address the problem, or showed deliberate indifference to tenant safety. A leak that poses immediate health hazards (such as toxic mold or sewage) combined with deliberate inaction is more likely to meet the outrageousness standard than a longer-lasting but less dangerous condition that the landlord is actively attempting to repair. Stoiber, supra. Belmont argues that it cannot, as a matter of law, be liable here due to the allegations of paragraph 179 which indicate it could not act without the authority of the owner, and the owner withheld consent. That is an important fact, but is something for the jury to consider when deciding if plaintiff met the required "outrageousness" prong of the tort. In the property manager context specifically, courts consider whether the manager knowingly failed to remedy dangerous conditions, regardless of claimed constraints on the manager's authority. The analysis in Stoiber and Burnett centered on whether the property manager's knowing inaction was extreme and outrageous — a factual question for the jury — without carving out a defense based on the manager's relationship with the property owner. A property manager who knows of dangerous conditions and fails to act cannot simply point to the owner's withheld consent as a shield; rather, the manager's decision to remain inactive despite that knowledge becomes part of the conduct evaluated for outrageousness. If the manager truly lacked authority to act, that might bear on whether the manager's conduct was intentional or reckless, but it would be

		analyzed within the elements of intent and outrageousness, not as a separate affirmative defense that categorically defeats liability. Plaintiffs contend they have alleged sufficient facts to support the claim. They cite to the following paragraphs: 26, 29, 35, 39, 43, 49-53, 167-179. The state as follows: 26. Plaintiffs called Belmont's maintenance men, including Anthony and Mario, and would complain about these ongoing issues. Also told them that these issues were affecting the health, including that the water intrusion was worsening the minor plaintiffs asthma. Despite this, the premises was not properly remediated at any time throughout plaintiffs tenancy and the plaintiff's asthma became worse. 29. In January 2024, plaintiffs noticed water intrusion and mold on patio. There was a hole in the roof over the patio which leaked. During that same month, a substantial amount of water backed up and over flowed from the 2nd floor to the bedroom hallway, the adjacent bedroom, the first floor kitchen ceiling and wall and cabinetry, and the patio ceiling area. Musty odors and physical discoloration consistent with mold growth became widespread following this overflow event. 35. The water intrusion in the bathrooms and the accompanying mold consistently got worse due to the lack of action by Belmont and Buwalda. 39. They just frequently complained to Belmont and bewildered about the kitchen water intrusion through the tenant portal. Plaintiffs also independently complained to Carrasco a Belmont employee. At one point, Carrasco expressly told plaintiffs that Belmont was not going to fix anything because they were selling the property. 43. The login to RS real estate plus in July 2024. That time, Belmont and Buwalda had done nothing to remediate the water leakage and mold despite plaintiffs repeated

		complaints, spanning more than 20 months of ongoing effort requests and notifications. 49. On September 3, 2024, plaintiffs had a mold inspection done in the premises by a professional mold inspection company. The inspector found visible microbial growth at the drywall of the kitchen ceiling inside the upper cabinet, with moisture readings indicating the ceiling and walls extending behind the kitchen cabinet and countertop were wet. 50. In the bathroom the mold inspector noted microbial shower and bathtub area, by the drywall next to the shower and signs of water damage extending behind the toilet. He documented an active water leak from the shower plumbing in his report. 51. On September 22nd, 2020 a second test was conducted in the premises. This test was also positive for potentially toxic mold. 52. Plaintiffs paid for the mold tests of the premises themselves. 53. Plaintiffs informed all defendants of both positive test results. Despite this information there was no remediation of any tech conducted in the rental unit. 167. Persistent without the mediation for the full duration inefficiency, Approximately 2 years from October 2022 through October 2024. Mold and water intrusion were present in the upstairs bathroom in the first month of occupancy in November 2022, spread to the kitchen in approximately May 2023, then spread to the patio area of the rental unit by January 2024. A catastrophic overflow event in January 2024 caused water to flood from the second floor bathroom through the bedroom hallway, adjacent bedroom, kitchen ceiling and walls, and patio ceiling, causing widespread water damage and accelerating mold growth. By September 2024, professional mobile inspection confirmed mold in the rental unit.

		168. As a direct result of this two-year exposure, all three Plaintiffs developed serious physical conditions that were documented by treating physicians and confirmed by laboratory testing. Plaintiff Alicia Bermumen was diagnosed with toxic mold exposure by her treating physician, with fatigue, dry cough, eye crusting, rash, chest, back and body acnes, constant sore throat, insomnia and anxiety. All symptoms have been present since 2022. She suffered with a drug-resistant staph infection too and abnormal weight loss. Minor Plaintiff, Abraham, had asthma and experienced flare ups severe enough to warrant new medications and more frequent doctor visits, directly caused by the mold conditions in the rental unit. Plaintiff Tiffany Brown suffered, among other symptoms, exhaustion, body and joint pain, brain fog, anxiety, depression, intestinal pain and coughing. 169. Defendants… made no attempt whatsoever to alleviate the problems. . . 170. The Defendants acted outrageously in failing to remediate the water intrusion and mold despite Plaintiffs repeated complaints thereby allowing the Plaintiffs to become sick and sicker over the course of 24 months they resided in the rental unit. 171. The Belmont Defendants. . . acted outrageously in failing to remediate the water intrusion and mold "because they were selling the property". . . 172. The Defendants . . . acted outrageously because it was shown the water leakage and mold by Plaintiffs in person but continued to fail to remediate the problems thereby causing plaintiffs to become sicker. . . . 174. The defendants either intended to cause or acted in reckless disregard of the probability of causing plaintiffs extreme emotional distress.

		175. At all relevant times, the Defendants had actual or constructive knowledge of extreme and outrageous conduct described herein, and condoned, ratified, and participated in such extreme and outrageous acts. 176. As a proximate result of the said conduct, Plaintiffs has suffered mental anguish and emotional suffering past and future in an amount in excess of the minimum jurisdiction of this Court and according io proof. 177. As a further and proximate result of the said conduct, Plaintiffs were required to and did seek medical attention, and will need medical attention in the future, all to Plaintiffs damages in a sun according to proof. 178. Defendant Belmont's conduct extended over a period of more than 20 months of active complaints from Plaintiffs, from November 2022 through the July 2024 sale, during which Belmont affirmatively represented through its employee Anthony that it would seek consent for repairs, induced Plaintiffs to remain in the unit through this representation, and then systematically canceled or ignored maintenance requests and ultimately acknowledged through Carrasco that it had no intention of performing repairs, This deliberate pattern of misrepresentation and knowing refusal to protect Plaintiffs from confirmed toxic exposure constitutes extreme and outrageous conduct exceeding the standard of civilized conduct. 179. Defendant Buwalda, as owner and lessor, authorized and ratified Belmont's refusal to remediate during the entirety of his ownership period. Buwalda received notice of the conditions through Belmont and was the party whose consent was required for repairs to be authorized. By withholding that consent and allowing Plaintiffs to remain exposed to toxic mold for over 20 months, including after the mold spread to multiple areas of the unit and Plaintiffs' health began visibly deteriorating, while simultaneously planning

		and executing the sale of the property, Buwalda acted with conscious disregard for the probability that Plaintiffs would suffer severe emotional distress. The Court overrules the demurrer to this cause of action. There are sufficient allegations as to how long the condition existed or exactly what physical conditions the plaintiffs allegedly suffered from as a result of the defects. This version of the pleading states enough facts showing Belmont's conduct was sufficiently outrageous to support the claim. With regard to Buwalda, a landowner's IIED exposure is grounded in a direct statutory and common law duty. The lessor of a building intended for the occupation of human beings must put it into a condition fit for such occupation and repair all subsequent dilapidations that render it untenantable. Civ. Code section 1941. Where a landlord has notice of uninhabitable conditions not caused by the tenants themselves, the landlord's breach of the implied warranty of habitability exists whether or not the landlord has had a reasonable time to repair. Knight v. Hallsthammar (1981) 29 Cal.3d 46. A landowner who knowingly, intentionally, and willfully fails to correct defective conditions — including mold — may state a cause of action for IIED, and whether such conduct is sufficiently extreme and outrageous is a factual question precluding dismissal on the pleadings. Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1056. The landowner's liability is thus direct, arising from the lease relationship, statutory obligations under Civil Code § 1941, and the implied warranty of habitability. In sum, based on the authority above, the Court overrules the demurrer to this cause of action against Buwalda.

		Seventh Cause of Action for Constructive Eviction Asserted by Belmont only Belmont argues plaintiffs concede they did not vacate the premises during Buwalda's ownership of the property and Belmont's management of the property. They allege they vacated the premises on October 13, 2024 after RS Real Estate Plus became owners of the property. Belmont contends plaintiffs did not vacate the property within a reasonable time. Belmont further argues it was not a landlord, but a property manager and therefore cannot be liable for constructive eviction. In opposition, plaintiffs contend they have alleged Defendant allowed the conditions to persist including: water intrusion, toxic mold, and structural disrepair in the bathrooms, kitchen, and patio were never remediated during the entire period of Defendant's ownership or management. Thereafter it carried through to the date of constructive eviction on October 13, 2024. Defendant's sustained failure to act was a proximate cause of the uninhabitable conditions that forced Plaintiffs from the unit. Plaintiffs further contend Belmont's timing argument ignores the new allegations. They have alleged Plaintiffs were induced to remain by repair representations, and that the conditions dramatically escalated and were professionally confirmed only in September 2024. FAC ¶ 187. Plaintiffs reasonably continued to rely on Belmont's representations that repairs would be forthcoming throughout 2022 and 2023. Instead, due to Belmont's intentional inaction the conditions escalated dramatically through the January 2024 overflow, spread of mold to multiple areas, and the September 3, 2024, professional mold inspection confirming toxic mold. FAC ¶ 188. Plaintiffs contend the timing issue is one of fact and cannot be decided on demurrer.

		Finally, plaintiffs contend Belmont can be liable in tort for wrongful constructive eviction caused by its tortious conduct. In reply, Belmont states this cause of action is a contract claim and cannot be asserted against a property manager pursuant to Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903. Constructive eviction as occurs when "the landlord engages in acts that render the premises unfit for occupancy for the purpose for which it was leased, or deprive the tenant of the beneficial enjoyment of the premises." California Apartment Assn. v. City of Pasadena (2025) 117 Cal.App.5th 187. More specifically, "any interference by the landlord by which the tenant is deprived of the beneficial enjoyment of the premises amounts to a constructive eviction if the tenant so elects and surrenders possession." Kulawitz v. Pacific Woodenware & Paper Co. (1944) 25 Cal.2d 664. The interference must be "substantial" rather than "insignificant or inconsequential." Lindenberg v. MacDonald (1950) 34 Cal.2d 678. The complaint must allege specific acts or omissions by the property manager that interfered with the tenant's possession. "Any disturbance of the tenant's possession by the lessor or at his procurement which has the effect of depriving the tenant of the beneficial enjoyment of the premises, amounts to a constructive eviction." Pierce v. Nash (1954) 126 Cal.App.2d 606. This can include physical interference with the premises, such as failing to repair a leaky roof, (Groh v. Kover's Bull Pen, Inc. (1963) 221 Cal.App.2d 611), installing obstructions that interfere with business operations (Pierce v. Nash (1954) 126 Cal.App.2d 606) or allowing vermin infestation from other parts of the building. Buckner v. Azulai (1967) 251 Cal.App.2d Supp. 1013. The alleged interference must render the premises "unfit for the purposes for which they were leased" or deprive the tenant "for a substantial period of time of the beneficial

		enjoyment or use of the premises." Groh v. Kover's Bull Pen, Inc. (1963) 221 Cal.App.2d 611. Courts consider both the extent of the physical interference and its impact on the tenant's ability to use the property for its intended purpose. Dussin Investment Co. v. Bloxham (1979) 96 Cal.App.3d 308. The interference must affect a "substantial portion" of the premises, not merely an insignificant part. Tregoning v. Reynolds (1934) 136 Cal.App.154. A critical factual allegation is that the tenant vacated the premises within a reasonable time after the landlord's interference. "In order that there be a constructive eviction it is essential that the tenant should vacate the property. There is no constructive eviction if the tenant continues in possession of the premises however much he may be disturbed in the beneficial enjoyment." Cunningham v. Universal Underwriters (2002) 98 Cal.App.4th 1141. What constitutes a reasonable time depends on the circumstances, but remaining in possession for more than six months of a one-year lease term was held unreasonable. Bakersfield Laundry Ass'n v. Rubin (1955) 131 Cal.App.2d Supp. 862. "[T]here is no constructive eviction if the tenant continues in possession of the premises however much he may be disturbed in the beneficial enjoyment." Veysey v. Moriyama (1921) 184 Cal.802. This requirement is absolute: "In order that there be a constructive eviction it is essential that the tenant should vacate the property." Lori, Limited, v. Wolfe (1948) 85 Cal.App.2d 54. Belmont argues the claim fails as the plaintiffs did not move out of the premises until after the property was sold. That fact doesn't really affect the merits of the demurrer. The fact that ownership transferred to a new entity during the tenant's continued occupancy would not change this analysis, the issue turns on whether the tenant's failure to vacate was within a reasonable time after the property

		manager's alleged interference. Clark v. Spiegel (1971) 22 Cal.App.3d 74. Plaintiffs inhabited the property from October 29, 2022 until October 13, 2024. They allege they noticed in May 2023 "there was water intrusion, bubbling and mold in the kitchen cabinet." (Complaint, paragraph 26). The also allege they "initially noticed water intrusion and mold" in the patio in January 2024. So, it was over one year between the time they first discovered mold until the time they moved out. But this version of the pleading adds additional allegations indicating Plaintiffs were induced to remain by repair representations, and that the conditions dramatically escalated and were professionally confirmed only in September 2024. FAC ¶ 187. Plaintiffs contend they reasonably continued to rely on Belmont's representations that repairs would be forthcoming throughout 2022 and 2023. Because the reasonableness of the time to vacate is a jury question, Stoiber, supra, a tenant who remained in the premises for an extended period after discovering uninhabitable conditions — but did so in reliance on the landlord's repeated assurances to repair — presents a factual basis for the jury to find that the delay was reasonable. The landlord's own conduct in making those assurances is directly relevant to whether the tenant's continued occupancy was reasonable under the circumstances. Any interference by the landlord that deprives the tenant of the beneficial enjoyment of the premises or renders the premises unfit for the purposes for which they are let amounts to a constructive eviction if the tenant so elects and vacates within a reasonable time (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281), and a landlord who induces a tenant to remain through promises of repair cannot easily argue that the resulting delay defeats the claim. Based on the above, the demurrer to this cause of action is overruled.

		Motion to strike Belmont Paragraph 145, Page 21, Lines 1 through 5 is located in the 4th cause of action for private nuisance. The Court strikes the punitive damages as requested. The allegation referenced is conclusory and unsupported by sufficient facts. Paragraph 184, Page 26, Lines 22 through 25 is located in the sixth cause of action for intentional infliction of emotional distress. The Court denies the motion to strike this paragraph. As discussed above, plaintiffs have sufficiently stated a claim for intentional infliction of emotional distress. A properly alleged IIED cause of action will support a claim for punitive damages. IIED is a qualifying tort under Civil Code § 3294 because the elements of the tort inherently require conduct that constitutes malice, oppression, or fraud. Because the very nature of IIED requires intentional or reckless conduct that is extreme and outrageous, a properly pleaded IIED claim necessarily alleges conduct that satisfies the malice or oppression requirements of § 3294. When a plaintiff adequately pleads the elements of IIED, those same allegations support a prayer for punitive damages without requiring additional factual allegations beyond what is needed to state the tort itself. See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217. Page 29, Line 28, (Prayer for Damages), which states: “5. For punitive damages against all Defendants as alleged herein.” Where, as here, a punitive damages prayer incorporates by reference the allegations of the entire complaint — i.e., "as alleged herein" — and at least one cause of action adequately pleads facts supporting malice, oppression, or fraud, the motion to strike the prayer should be denied. In Monge v. Superior Court, (1986) 176 Cal.App.3d 503, the Court held there was no basis in law for

		granting a motion to strike where the plaintiffs' noncontractual causes of action could include allegations seeking punitive damages and the charging allegations of the complaint, read as a whole, clearly contained sufficient allegations of fact which if proven would sustain an award of punitive damages upon defendants' malice or oppression. Similarly, in Perkins v. Superior Court, (1981) 117 Cal.App.3d 1, the court held that the trial court abused its discretion in striking all references to exemplary damages on the ground that the petitioner failed to state a cause of action for such damages, where the complaint adequately pleaded a cause of action for punitive damages. As plaintiffs have properly stated a claim for punitive damages in connection with the 6th cause of action, the Court denies the motion to strike. Buwalda Attorney fee references and request for prejudgment interest Paragraphs 159, 163, page 29, line 27 and page 30, line 8. The Court denies the motion to strike as to all references to attorney fees. Despite the availability of the motion to strike, it is improper to use that mechanism to eliminate a prayer for attorney fees. In Snatchko v. Westfield LLC, (2010) 187 Cal.App.4th 469, the court reversed an order striking a plaintiff's prayer for attorney fees, holding that there is no requirement that the intent to seek attorney fees under Code of Civil Procedure § 1021.5 must be pleaded in the underlying action. The court explained that such fees are not part of the underlying cause of action, but are incidents to the cause and are properly awarded after entry of judgment. Because there was no requirement that fees be pled at all, the trial court erred in striking the prayer based on a failure to adequately plead their basis, and the plaintiff's failure to reallege the request in an amended complaint did not waive or forfeit the ability to seek fees at the conclusion of the case. Snatchko, supra.

		The above is also true for a request for prejudgment interest. Because there is no requirement to plead prejudgment interest specifically, a motion to strike a prayer for prejudgment interest is improper. The right to prejudgment interest is determined by whether the statutory requirements are met, not by whether it was adequately pled in the complaint. Watson Bowman Acme Corp. v. RGW Construction, Inc. (2016) 2 Cal.App.5th 279. "Outrageous" and other punitive damages language in 6th cause of action Paragraphs 173 and all requests (#9 through 18) regarding punitive damages language is located within the 6th cause of action for intentional infliction of emotional distress. The Court denies the motion to strike this paragraph. As discussed above, plaintiffs have sufficiently stated a claim for intentional infliction of emotional distress. A properly alleged IIED cause of action will support a claim for punitive damages. IIED is a qualifying tort under Civil Code § 3294 because the elements of the tort inherently require conduct that constitutes malice, oppression, or fraud. Because the very nature of IIED requires intentional or reckless conduct that is extreme and outrageous, a properly pleaded IIED claim necessarily alleges conduct that satisfies the malice or oppression requirements of § 3294. When a plaintiff adequately pleads the elements of IIED, those same allegations support a prayer for punitive damages without requiring additional factual allegations beyond what is needed to state the tort itself. See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217.

		Misc. Paragraph 121 is located in the 3rd cause of action for breach of implied warranty of habitability. The Court strikes the punitive damages as requested. The allegation referenced is conclusory and unsupported by sufficient facts. Page, 13, line 1 is located in the 1st cause of action for negligence. The Court strikes the language as requested. The allegation referenced is conclusory and unsupported by sufficient facts. Page 15, line 10 does not refer the "intentional" conduct. It states: "As a direct and proximate result plaintiff are entitled to moving expenses according to proof." As such, the Court denies the requested relief. Page 20, lines 1-2 and page 21, lines 1-5 are located in the 4th cause of action for private nuisance. The Court strikes the language as requested. The allegation referenced is conclusory and unsupported by sufficient facts Page 29, line 1 is located in the 7th cause of action for constructive eviction. The Court denies the motion to strike. A claim for punitive damages is properly stated. Page 29, line 28: Prayer for punitive damages. The Court denies this request for the same reasons stated in connection with Belmont's motion to strike above. RULING: Belmont Defendant Belmont Brokerage and Management, Inc. dba Belmont Property Management's demurrer to the Sixth Cause of Action for Intentional Infliction of Emotional Distress, and Seventh Cause of Action for Constructive Eviction is overruled in its entirety.

		Belmont shall file and serve an answer to the First Amended Complaint within 21 days. Belmont's motion to strike is granted as to Paragraph 145, Page 21, Lines 1 through 5. The remaining requested relief is denied. Belmont's request for judicial notice is granted. Buwalda Defendant Vern Buwalda's demurrer to the Sixth Cause of Action for Intentional Infliction of Emotional Distress is overruled. Buwalda's motion to strike is granted as to Paragraph 121, Page, 13, line 1, Page 20, lines 1-2 and page 21, lines 1-5. The remaining requested relief is denied. Buwalda shall file and serve an answer to the First Amended Complaint within 21 days. Defendants shall give notice.
13	**Mariscal vs. Luis' Auto Repair & Tires** 2025-01520213	**Motion to Be Relieved as Counsel of Record** The motion by Vahan Gabrielyan, Esq., Downtown LA Law Group, to withdraw as counsel for plaintiff Ramon Mariscal is GRANTED, effective upon filing proof of service of the signed order on the client. (Cal. Rules of Court, Rule 3.1362.) Moving party shall give notice.

14	**Itria Ventures LLC vs. Naked Apps, LLC.** 2025-01458832	**Motion to Enforce Settlement** In General California Code of Civil Procedure section 664.6 provides that if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. The statute also permits the court to dismiss the case without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement, if the parties or their counsel so stipulate in writing or orally before the court. Because of its summary nature, strict compliance with the requirements of section 664.6 is a prerequisite to invoking the power of the court to impose a settlement agreement. Critzer v. Enos (2010) 187 Cal.App.4th 1242. The moving party must show that the settlement was either memorialized in a writing signed by the parties themselves, or was made orally before the court, not merely agreed to by counsel outside of court. Critzer, id. The court has authority to determine whether the parties entered into a valid and binding settlement of all or part of the case. In re Marriage of Hasso (1991) 229 Cal.App.3d 1174. The moving party must demonstrate that the parties actually reached a meeting of the minds on the material terms of the settlement. Critzer, supra. Where the record demonstrates no meeting of minds concerning material terms, a motion to enforce must be denied. On a motion to enforce a settlement agreement, the trial court sits as trier of fact, and its ruling on all factual issues must be upheld where supported by substantial evidence. In re Marriage of Hasso (1991) 229 Cal.App.3d 1174. If the court determines that the parties entered into an

		enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The court retains jurisdiction to enforce a settlement under the statute even after a dismissal, but only if the parties requested such a retention of jurisdiction before the dismissal. Madrigal v. Hyundai Motor America (2025) 17 Cal.5th 592. Merits Itria has attached the Settlement Agreement and Stipulation and Proposed Order for Entry of Judgment Pursuant to Settlement as exhibits 1 and 2 to the declaration of Harrison Smalback (ROA #62.) Paragraph 8 of the Agreement stipulates that "the Superior Court for Orange County, California, shall have jurisdiction over the parties to strictly enforce this Agreement until performance in full of the terms of the Agreement has occurred or enter a Judgment in favor of Itria for the remaining Settlement Amount if Defendants default on the Agreement. (Exhibit 1, paragraph 8.) A dismissal without prejudice, retaining jurisdiction was filed 10-31-25. (ROA #49.) Attorney fees Itria requests an award of attorneys' fees in the amount of $4,422.50 in connection with bringing this motion. Itria may be entitled to the fees, but any request for fees as part of the judgment needs to be by separate motion. As discussed above, the court, upon motion, may enter judgment pursuant to the terms of the settlement. Ca. Civ. Pro. Section 664.6. The statute's grant of authority is expressly tied to the terms of the settlement, the court enters judgment pursuant to those terms, and no more. This limitation was applied directly in Machado v. Myers, (2019) 39 Cal.App.5th 779, where the court held that a judgment

		entered under section 664.6 violated the statute because it omitted material settlement terms, including the parties' agreement that each would bear their own attorney fees and costs. The case illustrates that the judgment must mirror the settlement agreement: if the settlement provides for attorney fees, they may be included; if it does not, the court cannot add them unilaterally. Because section 664.6 limits the court to entering judgment pursuant to the settlement's terms, attorney fees incurred in bringing the enforcement motion itself — i.e., fees not provided for in the settlement — are not automatically includable in the section 664.6 judgment. In J.B.B. Investment Partners, Ltd. v. Fair, (2014) 232 Cal.App.4th 974, the trial court granted the motion to enforce the settlement under section 664.6 but separately denied attorney fees, and the Court of Appeal treated the attorney fee order as a distinct ruling subject to its own appeal. This procedural treatment confirms that attorney fees are handled separately from the enforcement judgment itself. Similarly, in Leeman v. Adams Extract & Spice, LLC, (2015) 236 Cal.App.4th 1367, the court recognized that attorney fees sought in connection with a section 664.6 motion were pursued under Code of Civil Procedure section 1021.5, a separate statutory basis, and that the court could not modify the fee amount agreed upon in the settlement without the mutual consent of the parties. If the settlement agreement itself includes an award of attorney fees, the court entering judgment under section 664.6 must include those fees as part of the judgment, consistent with the settlement's terms. In Robles v. City of Ontario, (2024) 106 Cal.App.5th 574, the court recognized that a stipulated judgment's express carve-out permitting attorney fees to enforce the judgment's terms gave the prevailing party the legal right to seek additional fees through a separate motion following enforcement proceedings. Therefore, even where fees are contemplated

		by the settlement, fees incurred in the enforcement process itself are properly sought by separate motion. In sum, Itria may be entitled to attorney fees, but the request must be made via a separate motion. RULING: Plaintiff Itria Ventures LLC's motion to enforce the settlement agreement between Itria and defendants Naked Apps, LLC, dba Naked Development, John Thomas Driscoll and Jason David Martinez is GRANTED. Itria to draft the proposed judgment for the Court's signature. Any request for attorney fees in connection with this matter shall be made via separate motion. Itria shall give notice.
15	**Aguilar vs. Mommy's Nutritional Center** 2023-01368168	**1. Motion to Be Relieved as Counsel of Record** **2. Motion to Be Relieved as Counsel of Record** Attorneys M. Danton Richardson, John W. Fagerholm, and the Law Offices of John W. Fagerholm, Ltd.'s motions to be relieved as counsel of record for Mommy's Nutritional Center and Omar Amer are GRANTED. Moving counsel shall file an amended proposed order with Responding Parties' (clients) correct address. The current proposed order contains no address. The order shall become effective upon the filing of the proof of service of the (amended) signed order upon the client. (See Cal. Rules of Court, rule 3.1362.) Moving counsel shall give notice.

16	**Birdsong vs. City of Newport Beach** 2026-01560089	**Motion – Other (Petition for Order Relieving petitioner from the Claim-Presentation Requirement of Government Code § 945.4)** Petitioner/plaintiff Phillip Birdsong's petition for relief from the claims presentation requirement of Government Code section 945.4 is DENIED. Petitioner has failed to demonstrate that "[t]he failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect...." (Gov. Code, § 946.6, subd. (c)(1).) " 'The definition of excusable neglect is defined as "neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances." ' [Citations.]" (Renteria v. Juvenile Justice, Department of Corrections & Rehabilitation (2006) 135 Cal.App.4th 903, 910; Department of Water & Power v. Superior Court (2000) 82 Cal.App.4th 1288, 1293, 1296 (DWP).) Because a reasonably prudent person would exercise reasonable diligence in pursuing a claim, "[t]he party seeking relief based on a claim of mistake must establish he was diligent in investigating and pursuing the claim." (DWP, at p. 1293.) In other words, "[a] person seeking relief must show more than just failure to discover a fact until too late; or a simple failure to act. He must show by a preponderance of the evidence that in the use of reasonable diligence, he could not discover the fact or could not act upon it." (DWP, at p. 1296; Munoz v. State of California (1995) 33 Cal.App.4th 1767, 1777 (Munoz); Greene v. State of California (1990) 222 Cal.App.3d 117, 121.) Petitioner has not shown that he exercised reasonable diligence but nonetheless was unable to identify the County of Orange as the owner of the subject trail in time to present a timely government claim to the County. Petitioner has not submitted any evidence of the efforts that he or his counsel undertook to identify the responsible public

		entity. Nothing shows he undertook an investigation or even performed a simple internet search to determine which public entity or entities owned, controlled, and/or maintained the Bayview Trail/Back Bay Loop, the subject trial where petitioner fell. Instead, both petitioner and his counsel admit they erroneously assumed the City of Newport Beach was the responsible entity because the subject trail is located within the City, apparently ignoring the fact it is also located within the County. (See Foroozandeh Decl. ¶ 4; Birdsong Decl. ¶ 4.) This is insufficient. California courts have repeatedly held that the failure of a claimant or claimant's attorney to conduct a reasonable investigation into the identity of the owner of a governmental property is not excusable neglect. (See, e.g., DWP, supra, 82 Cal.App.4th at pp. 1295-1296 [there is no basis for relief where counsel fails to exercise reasonable diligence to discover the true owner of the site where the accident occurred; Greene v. State of California, supra, 222 Cal.App.3d at pp. 122-123 [same]; DeYoung v. Del Mar Thoroughbred Club (1984) 159 Cal.App.3d 858, 864-865 [claimant and her counsel should have conducted an investigation into whether any other entity had any responsibility for the injury, even where the plaintiff was informed by a representative of the race track where she fell that the track was solely responsible for the injury; reliance on an adversary's statements in the face of a statute of limitations is inexcusable neglect]; Shank v. County of Los Angeles (1983) 139 Cal.App.3d 152, 157 ["a petitioner or his [or her] attorney must show more than that they did not discover a fact until too late; they must establish that in the use of reasonable diligence they failed to discover it. [Citations.] There is a total absence of evidence that petitioner or her attorney exercised reasonable diligence (or any diligence) in an effort to ascertain the public status of [the defendant]"]; City of Fresno v. Superior Court (1980) 104 Cal.App.3d 25, 33 [where identity of public entity's ownership of garage was readily ascertainable with

		minimal investigation but attorney simply assumed parking garage was privately owned, excusable neglect not shown because attorney "did nothing to ascertain the possible defendants that should be joined in his client's suit"]; Black v. County of Los Angeles (1970) 12 Cal.App.3d 670, 676-677 ["A petitioner must show more than that he did not discover a fact until too late; he must establish that in the use of reasonable diligence he failed to discover it"; " 'It stretches one's credulity to believe that this information could not have been ascertained through the exercise of reasonable diligence. ...' "].) Petitioner contends Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 278 (Bettencourt) supports relief, but that case is distinguishable. In Bettencourt, a student drowned while on a field trip sponsored by a community college. Less than four weeks before the claims statute was to expire, the attorney was hired. On being hired, he immediately investigated the accident, retained an investigator, and contacted the community college. Within four days of being hired, the attorney filed a claim with the state under the mistaken impression the employees of the community college were state employees. Six weeks later, after the claims statute had expired, the attorney learned the employees of the community college were actually employed by a different public entity, and within three days, he sought leave to file a late claim. The Bettencourt court concluded the mistaken assumption was one a reasonably prudent person would have made because of the "confusing blend of state and local control and funding" for community colleges and their employees, and the attorney had otherwise shown diligent pursuit of the action. (Id. at pp. 276-278.) Here, there is no indication petitioner or his counsel ever investigated who might be responsible for the subject trail. Petitioner and his counsel simply assumed the City was responsible for the trail just because it was located in the City, apparently without

		looking into the matter. (See Foroozandeh Decl. ¶ 4; Birdsong Decl. ¶ 4; see also Foroozandeh Decl., in passim; Birdsong Decl., in passim.) They then sat back and "reli[ed]" on the City's claims handling process (see Foroozandeh Decl. ¶¶ 5-6), but it was not the City that was required to determine the proper public entity—that responsibility remained with petitioner at all times. Relying on an adversary to conduct an investigation into the proper defendant for petitioner and/or the adversary's claims handling process to alert them to the proper defendant in the face of a statute of limitations is inexcusable neglect. (See DWP, supra, 82 Cal.App.4th at p. 1296 & fn. 6.) "Where the lateness of the claim is attributable to the failure of the claimant or his counsel to conduct a reasonably prudent investigation of the circumstances of the accident, relief from the claims filing statute is not available." (Id. at p. 1296.) Defendant shall give notice.